

ORDER SHEET.

IN THE ISLAMABAD HIGH COURT, ISLAMABAD.

JUDICIAL DEPARTMENT.

Criminal Miscellaneous No. 256 of 2025

MUHAMMAD WAJID MUNEER.

VS

THE STATE ETC.

S. No. of order/ proceedings	Date of order/ proceedings	Order with signature of Judge and that of parties or counsel where necessary.
---	---	--

17.02.2025

**Ch. Javed Saddique, Advocate for the Petitioner.
Mr. Mohsin Bashir, Advocate for the Complainant.
Raja Zameer ud Din, Assistant Attorney General.
Mr. Babar Ali SI, F.I.A Cyber Crime, Islamabad.**

1. Through the instant Petition, the Petitioner [Muhammad Wajid Muneer (**“Petitioner/Accused”**)] seeks post-arrest bail in case FIR No. 266/24 dated 11.11.2024 registered under Section 14 of the Prevention of Electronic Crimes Act, 2016 (**“PECA”**) read with Sections 419/420/468/471/34/109 of the Pakistan Penal Code, 1860 (**“PPC”**) with FIA, Cyber Crime Reporting Centre, Islamabad (**“Subject FIR”**).

2. Facts of the case as per contents of the Subject FIR are that consequent upon conclusion of enquiry No.RE-1236/2024 of FIA Cyber Crime Reporting Centre, Islamabad, it transpired that (i) Muhammad Wajid Munir son of Sajid Munir Hussain resident of House No.NE4252, Mohallah Chah Sultan Rawalpindi having CNIC No.37405-5940838-3 (**Petitioner/Accused**), (ii) Muhammad Farhan, (iii) user of WhatsApp No.+923322307074, (iv) user of WhatsApp No.+923347139375, (v) user of WhatsApp No.+923326820956, (vi) user of WhatsApp No.+923306102706, with malafide intentions and ulterior motives, fraudulently and dishonestly allured the Complainant under the pretext of online investment for **“Interactive Broker”** IBKR specifically in Pakistani and

Chinese Shares and IPOs via cross-market opportunities through IBPE PRO App and Website <https://m.globalpk.top>, result in fraud of PKR. 3,705,000/-. The fraudulent amount was obtained in the alleged bank accounts i.e. (i) Account title Ehtisham Nabeel having UBL Account No.IBANPK56UNIL0109000315515464, (ii) Account title Jalal Din & Sons having Allied Bank Account No.09670010005474750021, (iii) Account title Blue Sky Minerals SMC Pvt. Ltd having Faysal Bank Limited Account No.PK00FAYS3716301000001291 and (iv) Account title New Gates Technologies SMC Pvt. Ltd having UBL Account No.IBANPK73UNIL0109000298065828. During enquiry, it came on record that the main perpetrator of this scam is employing a counterfeit IBPE PRO mobile application. This malicious app remains accessible on the Google Play Store and is still being exploited by scammers. The app's web address i.e. <https://m.globalpk.top> and IBPE PRO mobile application is currently operational. Furthermore, the scammers have impersonated the identity of Mr. Martin allegedly from IBKR Wealth Hub307, and his assistant Mr. Jayee Koteey, to lend credibility to their fraudulent scheme. Perpetrators are predominantly utilizing multiple WhatsApp numbers to conduct their fraudulent activities misleadingly using the name of IBPE PRO App and shared obsolete addresses and fake documents of Interactive Brokers. During enquiry, sufficient incriminating evidence came on record against the accused persons for their involvement in commission of offences, hence, this FIR.

3. Learned counsel for the Petitioner/Accused argued that the Petitioner/Accused is innocent and has no nexus whatsoever with the commission of the alleged offences; that the Petitioner/Accused has been falsely involved in the instant case due to ulterior motives and malicious intent; that the allegations in the FIR are based on conjectures, surmises, and assumptions and lack substantive or corroborative evidence; that no direct or independent evidence is available to connect the Petitioner/Accused with the alleged offences; that the

offences do not fall under the prohibitory clause; that investigation is complete; that there is no likelihood of the Petitioner/Accused's absconding or tampering with the evidence; that the prosecution has failed to show any *mens rea* or direct involvement of the Petitioner/Accused in the alleged offences, which are essential ingredients of the offences cited in the FIR; and that the Petitioner/Accused is ready to furnish solvent surety bond to the satisfaction of court if he is released on bail.

4. Learned AAG resisted to the instant bail petition and prayed for its dismissal.

5. I have heard the learned counsel for the parties and have also perused the record with their able assistance.

6. The Petitioner/Accused has been nominated after conducting an enquiry by the FIA Cyber Crime Circle and during enquiry, it revealed that the Petitioner/Accused is found involved in the offences under Section 14 of PECA read with Sections 419/420/468/471/34/109, PPC. The role of the Petitioner/Accused is that he defrauded the Complainant through several WhatsApp numbers and by using IBPE PRO mobile application, to the tune of Rs. 3,705,000/-. Allegedly, he not only committed offences under Section 14, PECA but also impersonated himself to be Mr. Martin allegedly from IBKR Wealth Hub307, and his assistant Mr. Jayee Koteey and persuaded Complainant. The Petitioner/Accused is also involved in a similar kind of offence i.e. FIR No. 230/24 dated 23.09.2024 registered under Section 14, PECA read with Sections 420/419/34 & 109, PPC with Police Station FIA Cyber Crime Reporting Centre Islamabad. Furthermore, the accused is involved in two other FIRs of similar nature.

7. Although the offences for which the Petitioner/Accused is nominated in the present case, as well as in other similar cases, are not covered by the prohibitory clause of Section 497, Cr.P.C, where the

grant of bail is a rule and refusal is an exception, the Petitioner/Accused's involvement in this case indicates that he is a habitual offender and there is a strong likelihood that the Petitioner/Accused may repeat the same offence, thereby posing a continued risk to innocent individuals. The repetition of offence is an exceptional circumstance, due to which the Petitioner/Accused is not entitled to the concession of bail, Moreover reasonable grounds also exist to connect him with the alleged offences.

8. In view of the foregoing, I am not inclined to grant bail to the Petitioner/Accused. As such the instant Bail Petition is **dismissed**.

9. All the observations made hereinabove are tentative in nature and shall have no bearing on the final determination of guilt or innocence by the learned trial Court.

(MUHAMMAD AZAM KHAN)
JUDGE